

Overall Visual Ideas

TITLE

What is
a CBA?

What a CBA can do

What a CBA cannot do

- 1 Why might
- 2
- 3 you want
- 4 one?
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how over each box for
an explanation + example

Who this dashboard is for

Glossary bottom

CBA
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STEP 1: PREPARE ✓

STEP 2: ENGAGE

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STEP 2: ENGAGE

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RESOURCE LIBRARY

KEYWORD SEARCH BOX

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HELP

FEEDBACK

BIBLIOGRAPHY + ACKNOWLEDGMENTS

Landing Page

LP_Visuals

TITLE

What is
a CBA?
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What a
CBA can
do

What a
CBA cannot
do

1 Why might
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Common benefit categories



What this
dashboard
is for

How to use it
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LP_Content

What is a CBA?

A Community Benefits Agreement (CBA) is a legally-binding contract between a developer and a community coalition (or, in some cases, a municipality) that outlines specific benefits the developer must deliver in exchange for community support or non-opposition to a project (Gross et al., 2005; Salkin & Lavine, 2008; De Barbieri, 2016). These benefits often include commitments such as local hiring, workforce development, environmental mitigation, affordable housing, or infrastructure investments.

CBAs emerged in the late 1990s and early 2000s as communities sought more equitable outcomes from major development projects, especially where residents had historically been excluded from decision-making (Baxamusa, 2008; Belongie & Silverman, 2018). They have since expanded into renewable energy, infrastructure, and utility-scale projects, where concerns about fairness, siting impacts, and trust are especially acute (Mueller & Brooks, 2020; Gunton & Markey, 2021).

What a CBA can do

- Create legally enforceable obligations that communities can monitor and hold developers to (Stephan, 2022).
- Ensure benefits are specific, measurable, and tied to project milestones (Gross et al., 2005).
- Build trust and transparency through structured negotiation and oversight (Brungard & Fraser, 2025).
- Reduce conflict and delays by addressing community concerns early (Baxamusa, 2008).
- Strengthen long-term accountability, especially when agreements include monitoring committees, reporting requirements, and successor clauses (Stephan, 2022; Gross, 2007).

What a CBA cannot do

- Replace meaningful community engagement or fix a broken process retroactively (Susskind et al., 1999).
- Guarantee equitable outcomes if community coalitions lack capacity or representation (De Barbieri, 2016; Been, 2010).
- Function effectively without clear commitments, independent oversight, and ongoing monitoring (Wolf-Powers, 2010; Marcello, 2007).
- Ensure compliance if benefits are vague, unenforceable, or dependent solely on goodwill (Gross, 2007; Clarke, 2016).

Why might you want one?

Communities and municipalities pursue CBAs because they:

1. Create enforceable commitments

CBAs ensure that benefits are not just promises but obligations.

Example: Block Island's CBA included a reimbursement clause that the developer honored years later when cable repairs were needed without litigation (Brungard & Fraser, 2025; Faulkner, 2020).

2. Reduce conflict and delays

Developers often negotiate CBAs to secure local support, avoid opposition, and streamline permitting (Baxamusa, 2008; Wolf-Powers, 2010).

3. Improve equity and procedural justice

CBAs can rebalance power by giving communities a structured role in shaping project outcomes (Mueller & Brooks, 2020; Cascadden et al., 2021).

4. Build long-term relationships and trust

CBAs that include community liaisons, advisory committees, and transparent reporting foster durable collaboration (Brungard & Fraser, 2025; Marcello, 2007).

5. Protect communities from risk

Well-designed CBAs include:

- successor clauses
- performance bonds
- monitoring committees
- dispute-resolution mechanisms (Gross, 2007; Stephan, 2022)

These tools help ensure benefits persist even when ownership changes or projects evolve.

Common community (public) benefit categories

- Childcare
- Community Investment
- Direct Finances
- Education
- Environment & Sustainability
- Affordable housing and other housing commitments

- Landowner Protections/ Benefits
- Local Business
- Local Hiring & Wage Requirements
- Safety
- Specialized/ Project Specific
- Traffic/Transportation
- Wage Requirements
- Waste Collection

Who this dashboard is for

Stretch goal - Role selector (community/government/developer)

This dashboard is designed for community organizers, municipality officials, and local boards who often face development project decisions with limited staff capacity, limited legal expertise, and limited time.

Primary audiences

- Community organizers and EJ advocates
Often working part-time or as volunteers, these users need accessible tools to level the playing field in negotiations and articulate community priorities.
- Municipal officials and staff
Town managers, planners, sustainability coordinators, conservation commissions, selectboards, zoning boards. These users need clear frameworks, templates, and examples to navigate CBA processes efficiently.
- Local government boards
Volunteer boards responsible for decisions affecting land use, permitting, and community well-being.

Secondary audiences

- Developers and project proponents
Seeking to understand community expectations and reduce project risk.
- Consultants and technical advisors
Supporting municipalities or communities in negotiation, engagement, or monitoring.
- Researchers and students
Studying community engagement, energy transitions, or planning processes.

How to use this dashboard

This dashboard is structured as a step-by-step toolkit that guides users through the entire CBA process from early preparation to long-term enforcement.

Use the dashboard to:

- Navigate the CBA process through six modular steps:
Prepare → Engage → Negotiate → Draft → Monitor → Enforce
- Access downloadable templates, worksheets, and checklists.
- Explore case studies that illustrate successful (and unsuccessful) CBAs.
- Learn about state-level requirements, legal basics, and best practices.
- Filter resources by project type, location, or benefit category.
- *Use role-based navigation (community, municipal, developer) to tailor guidance.*

-Use the dropdown step modules to go through the CBA development process, accessing tips, explanations, and downloadable templates and worksheets along the way.

-Scroll down to the resource library to view the complete collection of templates, worksheets, examples, and additional resources in a filterable and searchable collection.

Module: Step 1 Prepare

1_Visuals

STEP 1: PREPARE



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STEP 1 — PREPARE

What communities and municipalities should do before any negotiation begins

1. Understand the Project Context & What the Developer Needs

Before you talk about benefits, get clear on what the developer is asking for and when they need it. Developers usually negotiate CBAs because they need something (permits, zoning approvals, subsidies, or community support). That's your leverage.

Things to pin down early:

- What approvals or incentives the project depends on
- The project's likely impacts (jobs, traffic, noise, environmental risks)

Who owns the project now and whether ownership might change

- This matters because benefits can fall apart when projects change hands unless the agreement includes successor clauses
- What this developer has offered in other communities

Understanding the timeline and pressure points helps you negotiate benefits that are real, specific, and tied to actual decision moments. It also helps you avoid vague promises that sound good but don't hold up later.

Suggested Checklist:

- ☐ Review the developer's permit applications and zoning requests to identify leverage points
- ☐ Ask for a project timeline and funding source information
- ☐ Research the developer's previous CBAs or community commitments in other towns
- ☐ Document potential impacts (traffic, noise, environment) using local data or reports
- ☐ Confirm ownership structure and future transfer plans to ensure successor clauses will apply

2. Define Community Priorities Early

Don't start with a list of benefits the developer offers. Start with what your community actually needs.

Use a [priorities worksheet](#) to identify:

- What problems the project should help solve
- Which benefits matter most (jobs, housing, mitigation, infrastructure, etc.)

- Which benefits require long-term commitments
- Which benefits are essential vs. negotiable
- What success looks like for your community

This step helps you avoid symbolic benefits that look good on paper but don't address real needs or aren't tied to measurable outcomes.

Suggested Checklist:

- ☐ Use surveys or listening sessions to identify top concerns
- ☐ Rank priorities using a scoring matrix (impact, feasibility, urgency)
- ☐ Translate broad goals (jobs) into measurable outcomes (X% local hires within two years)
- ☐ Document essential vs. negotiable benefits

3. Assess Your Capacity & Identify Support Needs

Communities often walk into negotiations at a disadvantage. Developers have lawyers, consultants, and technical experts. Communities usually don't, and that imbalance can shape the entire agreement.

Use a **readiness checklist** to assess:

- Do we have legal support?
- Do we have someone who understands negotiation strategy?
- Do we have stable organizations that can stay involved long-term?
- Do we have the capacity to monitor commitments over time?
- Do we need outside help (legal clinics, EJ offices, technical assistance programs)?

Suggested Checklist (as needed):

- ☐ Contact local universities for pro bono legal or planning assistance
- ☐ Reach out to state EJ offices for technical help with environmental review
- ☐ Identify funding for community consultants or translators
- ☐ Build small advisory group of subject matter experts (law, finance, construction)
- ☐ Schedule capacity check-ins every few months to adjust resources

4. Consider Bringing in a Neutral Facilitator or Mediator

A neutral can:

- Convene all the right people
- Set ground rules
- Help everyone build a shared fact base

- Keep discussions focused and productive
- Prevent power imbalances from derailing negotiations
- Turn broad ideas into clear, written commitments

Agreements reached through facilitated, problem-solving-oriented processes tend to be more durable and easier to enforce. They also build trust which is essential for long-term monitoring and collaboration.

Suggested Checklist:

- ☐ Choose someone with experience in land-use or public-sector negotiation
- ☐ Verify neutrality (no ties to the developer)
- ☐ Ask them to draft ground rules and a shared fact-finding plan
- ☐ Use structured agendas and time limits to keep meetings productive
- ☐ Ensure the facilitator documents agreements and distributes summaries soon after meetings

1_PDF/Template

Priorities Worksheet

Purpose: Use this worksheet to identify what your community needs most from a proposed project before negotiations begin. It helps translate broad goals into measurable outcomes and ensures benefits align with local priorities.

Section 1 — Community Needs

What problems should this project help solve? (List specific issues such as housing shortages, traffic congestion, job access, or environmental risks.)

Section 2 — Priority Benefits

Which benefits matter most?

- ☐ Jobs and workforce development
- ☐ Affordable housing
- ☐ Environmental mitigation
- ☐ Infrastructure improvements
- ☐ Community investment or public spaces
- ☐ Other: _____

Section 3 — Commitment Duration

Which benefits require long-term commitments?

- ☐ Ongoing local hiring
- ☐ Annual community fund contributions
- ☐ Long-term environmental monitoring
- ☐ Maintenance of public amenities
- ☐ Other: _____

Section 4 — Negotiation Priorities

Which benefits are essential vs. negotiable?

Essential (non-negotiable)

Negotiable (flexible)

Section 5 — Defining Success

What does success look like for your community?

(Describe measurable outcomes e.g., “50 local jobs created,” “reduced flooding,” “new childcare center operational.”)

Optional Scoring Matrix

Rate each proposed benefit by **Impact**, **Feasibility**, and **Urgency** (1 = Low, 5 = High).

Benefit	Impact	Feasibility	Urgency	Notes
Local Hiring	☐ 1 ☐ 2 ☐ 3 ☐ 4 ☐ 5	☐ 1 ☐ 2 ☐ 3 ☐ 4 ☐ 5	☐ 1 ☐ 2 ☐ 3 ☐ 4 ☐ 5	
Affordable Housing	☐ 1 ☐ 2 ☐ 3 ☐ 4 ☐ 5	☐ 1 ☐ 2 ☐ 3 ☐ 4 ☐ 5	☐ 1 ☐ 2 ☐ 3 ☐ 4 ☐ 5	
Environmental Mitigation	☐ 1 ☐ 2 ☐ 3 ☐ 4 ☐ 5	☐ 1 ☐ 2 ☐ 3 ☐ 4 ☐ 5	☐ 1 ☐ 2 ☐ 3 ☐ 4 ☐ 5	

Readiness Checklist

Purpose: Use this checklist to assess your community's capacity and identify support needs before entering negotiations. It helps ensure you have the right expertise, resources, and partnerships to participate effectively and monitor commitments over time.

Section 1 — Legal and Technical Support

- ☐ Do we have legal support (e.g., municipal counsel, legal clinics, pro bono partners)?
- ☐ Do we have someone who understands negotiation strategy and contract language?
- ☐ Do we have access to technical experts (engineering, environmental, financial)?

Section 2 — Organizational Capacity

- ☐ Do we have stable organizations that can stay involved long-term?
- ☐ Do we have a coordinating group or coalition structure for decision-making?
- ☐ Do we have funding or staff time dedicated to CBA work?

Section 3 — Monitoring and Accountability

- ☐ Do we have the capacity to track and monitor commitments over time?
- ☐ Do we have systems for data collection and public reporting?
- ☐ Do we have a plan for community oversight (e.g., monitoring committee or liaison)?

Section 4 — External Support and Partnerships

- ☐ Do we need outside help (legal clinics, EJ offices, technical assistance programs)?
- ☐ Have we identified potential partners at universities or state agencies?
- ☐ Do we have contacts for translation, facilitation, or community outreach support?

Section 5 — Action Plan

List next steps to fill gaps in capacity or expertise.

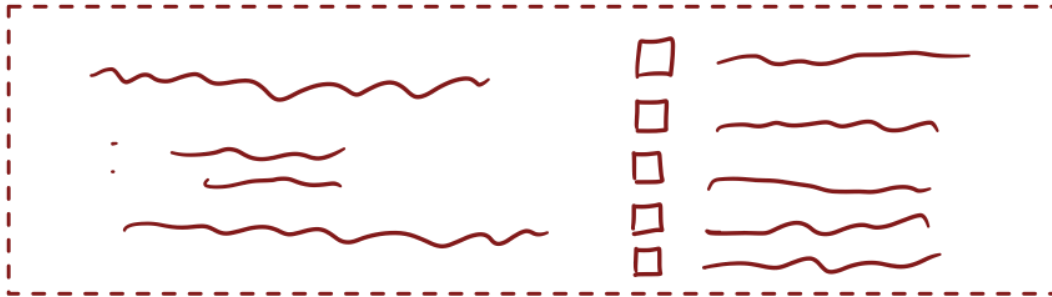
Module: Step 2 Engage

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STEP 2: ENGAGE



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STEP 2 — ENGAGE

How to build meaningful, inclusive, and effective community engagement before negotiations begin

1. Start Engagement Early and Make It Continuous

Communities need to be involved before major decisions are made, not after the project is already designed. Early engagement gives residents a real chance to influence site selection, project design, mitigation measures, and benefit priorities.

What early engagement looks like:

- Sharing project information as soon as it's available
- Hosting conversations before permit filings
- Keeping communication open through construction and operations
- Providing updates in plain language and multiple formats

Suggested Checklist:

- ☐ Begin outreach ideally at least two months before permit submission
- ☐ Maintain updates through newsletters or a project webpage
- ☐ Host quarterly community briefings during construction and operation

2. Make Engagement Inclusive and Accessible

People most affected by a project are often the least likely to be at the table. Engagement must be designed to reach them.

This means:

- Holding meetings at accessible, familiar locations
- Scheduling at times that work for working families
- Providing childcare, food, transportation, or stipends when possible
- Offering interpretation and translation
- Using multiple outreach channels (in-person, online, surveys, pop-ups, local media)
- Partnering with trusted community organizations to reach underrepresented groups

Suggested Checklist:

- ☐ Consider providing childcare and food at meetings
- ☐ Offer interpretation in languages spoken locally
- ☐ Use multiple formats (in-person, virtual, pop-up)

- ☐ Partner with trusted local organizations to co-host sessions

3. Map the Community and Identify Who Needs to Be at the Table

Engagement starts with understanding who is affected and who has been historically excluded.

Groups to consider:

- Residents (owners, renters, unhoused residents)
- EJ communities
- Neighborhood associations
- Faith-based and cultural groups
- Youth and elder advocates
- Local businesses
- Public health providers
- Environmental organizations
- Workforce development groups and unions
- Tribes
- Municipal boards and staff
- Regional planning agencies

This step helps avoid representational problems where coalitions don't reflect the full community and legitimacy suffers.

Suggested Checklist:

- ☐ Create a stakeholder map showing influence and impact
- ☐ Use demographic data to ensure EJ community representation

4. Create a Clear, Transparent Engagement Plan

A strong **engagement plan** sets expectations and builds trust. It should explain:

- Goals of engagement
- Outreach strategies (who you're trying to reach and how)
- Timeline and milestones
- Language access and accessibility supports
- How input will be collected
- How decisions will be made
- How feedback will be used
- How results will be shared back to the community

Transparency is critical. When decision-making processes are unclear, trust erodes and enforcement becomes harder.

Suggested Checklist:

- ☐ Publish the plan online and in print
- ☐ Include a timeline of engagement milestones
- ☐ Define how feedback will be incorporate into project design
- ☐ Assign responsibility for follow-up communication

5. Document What You Hear and Show How It Shapes the Project

Communities need to see that their input matters. This step is essential for legitimacy. This means:

- Tracking all comments and concerns
- Identifying recurring themes
- Showing how feedback influenced project design, mitigation, or benefit priorities
- Publishing summaries in accessible formats
- Closing the loop with residents

Suggested Checklist:

- ☐ Use a comment-tracking spreadsheet (theme, response, action taken)
- ☐ Summarize findings in plain-language reports
- ☐ Present examples to demonstrate responsiveness (You said, We did)
- ☐ Archive all materials for future monitoring

2_PDF/Template

Engagement Plan

Purpose: Use this template to design a clear, transparent, and inclusive engagement process before negotiations begin. It helps define goals, outreach strategies, timelines, and accountability measures so community input meaningfully shapes project outcomes.

Section 1 — Engagement Goals

What are the main objectives of engagement?

- ☐ Inform the community about the project.
- ☐ Gather feedback on design and impacts.
- ☐ Identify community priorities for benefits.
- ☐ Build trust and transparency between stakeholders.
- ☐ Other: _____

Section 2 — Outreach Strategies

Who are you trying to reach and how will you reach them?

- ☐ Public meetings and listening sessions.
- ☐ Surveys or online feedback forms.
- ☐ Pop-up events or tabling at community locations.
- ☐ Partnerships with trusted local organizations.
- ☐ Social media and local media announcements.
- ☐ Other: _____

Section 3 — Accessibility and Inclusion

How will you make engagement accessible to everyone?

- ☐ Provide childcare, food, or transportation support.
- ☐ Offer interpretation and translation services.
- ☐ Schedule meetings at times that work for working families.
- ☐ Use multiple formats (in-person, virtual, pop-up).
- ☐ Ensure ADA-compliant venues and materials.

Section 4 — Timeline and Milestones

When will engagement activities occur and how will progress be tracked?

Milestone	Date	Activity	Responsible Party
Kick-off Meeting	_____	Introduce project and goals	_____
Listening Sessions	_____	Gather community input	_____
Draft Feedback Review	_____	Present summary of input	_____

Final Report Back

Share how feedback was used

Module: Step 3 Negotiate

3_Visuals

STEP 3: NEGOTIATE



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STEP 3 — NEGOTIATE

Designing a fair, transparent, and enforceable negotiation process

1. Sample Negotiation Timelines

Negotiations vary by project type, permitting structure, and coalition capacity, but successful CBAs tend to follow a predictable sequence. The timeline below synthesizes patterns from documented cases and consensus-building literature.

Phase 1 — Pre-Negotiation (2–6 weeks)

- Coalition alignment and mandate setting
- Identification of negotiators and advisors
- Agreement on ground rules and decision-making procedures
- Joint fact-finding plan

Phase 2 — Issue Identification (2–8 weeks)

- Stakeholder presentations
- Community priorities surfaced and ranked
- Developer constraints clarified
- Agreement on scope of benefits

Phase 3 — Option Development (4–12 weeks)

- Brainstorming benefit options
- Technical vetting (costs, feasibility, timelines)
- Iterative drafting using a single negotiating text

Phase 4 — Drafting & Closure (2–6 weeks)

- Converting commitments into enforceable language
- Adding monitoring, reporting, and dispute-resolution provisions
- Legal review
- Coalition or municipal ratification

Phase 5 — Implementation Planning (1–4 weeks)

- Establishing committees or liaisons
- Setting reporting schedules
- Clarifying roles and responsibilities

Suggested Checklist:

- ☐ Include estimated durations for each phase and responsible parties
- ☐ Use shared calendars to track deadlines
- ☐ Schedule debriefs after each phase to review progress

2. Guidance on Neutral Facilitation

Neutral facilitation is one of the strongest predictors of enforceable agreements.

Why a neutral matters

- Levels the playing field when communities lack legal or technical capacity
- Ensures balanced participation and prevents domination by developers or political actors
- Supports joint fact-finding, reducing disputes over data
- Helps translate broad commitments into implementable terms

What a neutral facilitator does

- Convenes all relevant stakeholders
- Establishes transparent ground rules
- Manages the agenda and ensures balanced participation
- Uses a single negotiating text to move parties toward closure
- Helps parties articulate interests rather than positions

When to bring in a neutral

- When power disparities are significant
- When trust is low
- When technical issues require joint fact-finding
- When negotiations stall or become adversarial

Suggested Checklist:

- ☐ Facilitators should prepare joint fact-finding summaries before each meeting
- ☐ Use consensus-building techniques like interest-based negotiation and single-text drafting
- ☐ Consider rotating meeting chairs to balance participation

3. Meeting Facilitation Guides

Effective meetings prevent drift, confusion, and domination by a single party. A facilitation guide for CBA negotiations should include:

Before the meeting

- Circulate agenda, ground rules, and technical materials

- Confirm who is empowered to make decisions
- Identify desired outcomes for the session

During the meeting

- Begin with a check-in and restatement of ground rules
- Use structured rounds to ensure all voices are heard
- Track issues on a shared screen or flip chart
- Separate brainstorming from evaluation
- Summarize agreements at the end of each segment

After the meeting

- Distribute a written summary within 48 hours
- Identify next steps, responsible parties, and deadlines
- Update the single negotiating text

Suggested Checklist:

- ☐ Begin with a brief recap of previous agreements
- ☐ Use visual aids to track issues
- ☐ End each meeting with a written summary and next-step assignments

4. Negotiation Preparation Worksheet

A preparation worksheet helps communities and municipalities enter negotiations with clarity and leverage. It should include:

A. Interests and Priorities

- What does the community need most?
- Which benefits are essential vs. negotiable?
- What long-term impacts must be mitigated?

B. Constraints and Opportunities

- What leverage does the community or municipality have (permits, political support, public opinion)?
- What constraints does the developer face (timelines, financing, regulatory requirements)?

C. Information Needs

- What data is missing?
- What technical expertise is required?
- What joint fact-finding questions should be proposed?

D. Draft Benefit Concepts

- Preliminary ideas for benefits
- Potential implementation partners
- Estimated costs and feasibility

E. Enforcement Preferences

- Preferred monitoring structures
- Dispute-resolution mechanisms
- Successor clauses, reporting schedules, penalties

Suggested Checklist:

- ☐ What data is missing? Could include traffic counts, wage benchmarks, emissions
- ☐ Specify enforcement penalties and reporting intervals
- ☐ Receive coalition sign-off before entering formal talks

5. Understanding Power Dynamics

Power imbalances shape every stage of negotiation.

Developer advantages

- Greater financial and legal resources
- Control over project timelines and technical information
- Ability to wait out community coalitions

Community disadvantages

- Limited legal capacity
- Volunteer-based participation
- Organizational instability

Municipal leverage

- Permitting authority
- Ability to condition approvals
- Political accountability to residents

Strategies to rebalance power

- Use of neutral facilitation
- Joint fact-finding to reduce information asymmetry
- Broad, inclusive coalitions to increase legitimacy
- Clear ratification procedures

- Early agreement on ground rules and decision-making
- Securing technical assistance or pro bono legal support

Suggested Checklist:

- ☐ Counter developer advantages by pooling community resources and publicizing shared goals
- ☐ Use media coverage strategically to maintain transparency
- ☐ Document all offers and counter-offers to prevent misrepresentation

3_PDF/Template

Negotiation Preparation Worksheet

Purpose: Use this worksheet to prepare for negotiations by clarifying community interests, identifying leverage points, and defining enforceable benefit concepts. It helps ensure discussions are strategic, transparent, and grounded in shared facts.

Section 1 — Interests and Priorities

What does the community need most?

- ☐ List essential benefits (e.g., jobs, housing, environmental mitigation).
- ☐ Identify which benefits are non-negotiable.
- ☐ Note long-term impacts that must be addressed.

Section 2 — Constraints and Opportunities

What leverage and limitations exist? ☐ Permitting authority or zoning approvals.

- ☐ Public support or political pressure.
- ☐ Developer constraints (timelines, financing, regulatory requirements).
- ☐ Community constraints (capacity, resources, time).

Section 3 — Information Needs

What data or expertise is missing? ☐ Traffic counts, wage benchmarks, emissions data.

- ☐ Environmental impact reports or economic analyses.
- ☐ Technical expertise (engineering, finance, construction).
- ☐ Joint fact-finding questions to propose.

Section 4 — Draft Benefit Concepts

List preliminary ideas for benefits and potential partners.

Benefit Idea	Implementation Partner	Estimated Cost / Feasibility

Section 5 — Enforcement Preferences

Define how commitments should be monitored and enforced.

- ☐ Preferred monitoring structure (committee, liaison, third party).
- ☐ Reporting schedule (quarterly, annual).
- ☐ Dispute-resolution mechanisms (mediation, arbitration).
- ☐ Successor clauses and penalties for non-compliance.

Section 6 — Preparation Checklist

- ☐ Gather all relevant project documents and data.
- ☐ Confirm coalition sign-off on priorities and positions.
- ☐ Define decision-making rules and ratification process.
- ☐ Schedule pre-negotiation briefings and debriefs.

Module: Step 4 Draft

4_Visuals

STEP 4 : DRAFT



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STEP 4 — DRAFT

Translate negotiated commitments into clear, enforceable, durable language

1. CBA Structure Template

A. Preamble / Purpose

1. Identifies the project, parties, and shared goals
2. States the intent to deliver community benefits and establish accountability

B. Definitions

- Defines key terms (e.g., “local hire,” “living wage,” “monitoring committee,” “successor”)
- Prevents ambiguity and future disputes

C. Benefit Commitments

Organized by category (e.g., workforce, environment, community investment).

Each benefit includes:

- Specific deliverable
- Timeline
- Responsible party
- Reporting requirements

D. Implementation & Monitoring

- Establishes committee or liaison
- Sets reporting schedule
- Outlines data access and transparency

E. Dispute Resolution

- Notice and cure
- Mediation
- Binding arbitration (if applicable)

F. Enforcement

- Legal enforceability
- Financial penalties or performance bonds
- Successor/assigns clause

G. Term, Amendments, and Termination

- Duration of commitments
- Process for amendments
- Conditions for termination

H. Signatures

- Developer
- Community coalition and/or municipality
- Additional signatories (if any)

Suggested Checklist:

- ☐ Use consistent numbering and defined terms throughout
- ☐ Include appendices for data reporting formats
- ☐ Require signatures from all parties and witnesses

2. Menu of Example Benefits

Workforce & Economic

- Local hiring requirements
- Living wage or prevailing wage standards
- Apprenticeship or job-training programs
- Minority- and women-owned business participation

Environmental & Mitigation

- Noise, dust, or air-quality mitigation
- Green space creation
- Stormwater improvements
- Agricultural or habitat protections

Community Investment

- Community investment funds
- Cultural or historical preservation
- Community centers, parks, or recreational facilities
- Public art or placemaking initiatives

Education

- Scholarships
- STEM or vocational training partnerships

- School facility improvements

Direct Financial Benefits

- Lump-sum payments
- Annual payments tied to project operation
- Host community agreements (common in RE)

Housing

- Affordable housing units
- Housing trust fund contributions
- Anti-displacement measures

Project-Specific / Localized

- Traffic mitigation
- Parking access
- Fishery assistance
- Landowner protections

Suggested Examples:

- ☐ Local hiring ex: 30% of construction jobs for residents within 10 miles
- ☐ Environmental mitigation ex: Install air-quality monitors and publish quarterly data
- ☐ Community investment ex: \$250,000 annual fund administered by a local nonprofit
- ☐ Housing ex: 10% of units reserved for households earning below 60% AMI

3. Model Clauses (Benefits, Reporting, Enforcement)

These are generic clause structures, not legal text.

A. Benefit Delivery Clause

The Developer shall provide [specific benefit] by [date], in coordination with [partner], and shall submit documentation of completion to the Monitoring Committee within [X] days.

- Specifies deliverable, timeline, responsible party, and reporting

B. Reporting Clause

The Developer shall submit quarterly reports detailing progress toward each commitment, including metrics, expenditures, and any delays, to the Monitoring Committee and make such reports publicly accessible.

C. Monitoring Committee Clause

A Monitoring Committee composed of [parties] shall meet at least [frequency] to review compliance, request documentation, and issue findings.

D. Notice and Cure Clause

If any party identifies non-compliance, it shall issue written notice. The Developer shall have [X] days to cure the breach before escalation to mediation or arbitration.

E. Enforcement Clause

This Agreement is enforceable in court. Remedies include specific performance, injunctive relief, and financial penalties as outlined in Section [X].

F. Successor Clause

All obligations under this Agreement shall bind successors for the duration of the project.

Suggested Checklist:

- ☐ Include deadlines and documentation requirements in each clause
- ☐ Specify who verifies completion (committee, agency, third party)
- ☐ Ensure dispute-resolution timelines are realistic (30-60 days)

4. Common Drafting Mistakes

- Vague or aspirational language

- “Developer will *seek to* hire locally”
- “Parties will *work together* to explore options”

- Missing timelines

- Benefits without deadlines rarely materialize.

- No monitoring structure

- Without a committee or liaison, reporting collapses.

- No successor clause

- A major failure point in long-term projects

- Overreliance on goodwill

- If enforcement depends on relationships rather than structure, benefits erode when leadership changes.

- Overly complex benefit packages

- Complexity without clear reporting makes accountability impossible.

- No amendment procedure

- Projects evolve; without a process, commitments drift

Suggested Checklist:

- ☐ Conduct a “plain-language audit” to remove ambiguous terms
- ☐ Cross-reference all benefits with monitoring sections to ensure coverage
- ☐ Include amendment procedures to adapt to project changes

4_PDF/Template

CBA Structure Template

Purpose:

This template provides a framework for drafting a Community Benefits Agreement between a developer and a community coalition or municipality. It ensures benefits are specific, measurable, and enforceable while promoting transparency and accountability.

Section 1 — Preamble / Purpose

Identify the project, parties, and shared goals.

- ☐ State the intent to deliver community benefits and establish accountability.
- ☐ Describe the project and its location.
- ☐ Summarize the community's objectives and values (equity, environmental justice, economic resilience).

Section 2 — Definitions

Define key terms to prevent ambiguity.

- ☐ Local Hire – Residents within X miles of the project.
- ☐ Living Wage – Hourly rate meeting basic living costs in the region.
- ☐ Monitoring Committee – Group responsible for tracking compliance.
- ☐ Successor – Any entity that acquires ownership or operation of the project.
- ☐ Community Benefit Fund – Dedicated fund for local programs and services.

Section 3 — Benefit Commitments

Organize benefits by category and include specific deliverables.

Category	Commitment	Timeline	Responsible Party	Reporting Requirements
Workforce & Economic	Local hiring target (30–50%) and apprenticeships	_____	Developer	Quarterly report
Environment & Mitigation	Air quality monitoring and stormwater improvements	_____	Developer + Municipality	Annual report
Community Investment	\$250,000 annual fund for local nonprofits	_____	Developer	Public dashboard
Housing	10% of units reserved for households below 60% AMI	_____	Developer	Semi-annual report

Section 4 — Implementation & Monitoring

- ☐ Establish a Monitoring Committee composed of community, developer, and municipal representatives.

- ☐ Set reporting schedule (quarterly or annual).
- ☐ Outline data access and public transparency requirements.
- ☐ Specify how findings will be published and addressed.

Section 5 — Dispute Resolution

- ☐ Define notice and cure period (e.g., 30 days to remedy non-compliance).
- ☐ Include mediation and arbitration options before legal action.
- ☐ Identify neutral facilitator or mediator if needed.

Section 6 — Enforcement

- ☐ State that the agreement is legally binding and enforceable in court.
- ☐ Include financial penalties or performance bonds for violations.
- ☐ Specify remedies such as specific performance or injunctive relief.
- ☐ Include successor clauses to ensure continuity after ownership changes.

Section 7 — Term, Amendments, and Termination

- ☐ Define duration of commitments (e.g., construction + 10 years of operation).
- ☐ Outline process for amendments (mutual consent and public notice).
- ☐ Specify conditions for termination (e.g., project completion or mutual agreement).

Section 8 — Signatures

- ☐ Developer Representative – Name, Title, Date
- ☐ Community Coalition Representative – Name, Title, Date
- ☐ Municipal Representative – Name, Title, Date
- ☐ Witnesses (if required)

Section 9 — Appendices

- ☐ Data reporting formats and templates.
- ☐ Maps or project plans.
- ☐ Community meeting summaries.
- ☐ Legal references or supporting documents.

Enforcement Checklist

Purpose: Use this checklist to ensure that all commitments in the Community Benefits Agreement are enforceable, transparent, and backed by clear accountability mechanisms. It helps track compliance, define remedies, and maintain long-term oversight.

Section 1 — Clarity and Specificity

- ☐ Each benefit is measurable and quantifiable.
- ☐ Timelines for delivery are explicit and realistic.
- ☐ Responsible parties are clearly named (developer, municipality, partner organization).
- ☐ Deliverables are linked to reporting requirements and milestones.

Section 2 — Monitoring and Oversight

- ☐ Monitoring committee or liaison is established and active.
- ☐ Reporting schedule is defined (quarterly, semi-annual, annual).
- ☐ Data access and transparency mechanisms are in place (public reports, dashboards).
- ☐ Community representatives participate in review and verification.

Section 3 — Dispute Resolution

- ☐ Notice and cure process is defined (e.g., 30 days to remedy non-compliance).
- ☐ Mediation and arbitration options are available before legal action.
- ☐ Neutral facilitator or mediator is identified if needed.
- ☐ Clear escalation pathway is outlined (from committee to legal enforcement).

Section 4 — Legal Enforceability

- ☐ Agreement is legally binding and enforceable in court.
- ☐ Financial penalties or performance bond are included for violations.
- ☐ Successor clauses ensure obligations continue after ownership changes.
- ☐ Remedies include specific performance, injunctive relief, or monetary damages.

Section 5 — Documentation and Transparency

- ☐ All reports and meeting summaries are archived and publicly accessible.
- ☐ Compliance status is updated regularly on public platforms.
- ☐ Community feedback is documented and addressed in follow-up reports.
- ☐ Annual review includes recommendations for amendments or improvements.

Section 6 — Follow-Up and Continuous Improvement

- ☐ Post-implementation evaluation is scheduled (1–2 years after completion).
- ☐ Lessons learned are shared with community and municipal partners.
- ☐ Procedures for amendments and renewals are defined.
- ☐ Long-term maintenance and funding plans are in place.

Module: Step 5 Monitor

5_Visuals

STEP 5 : MONITOR



1.  (click to expand)



2. 

3. 

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(expand similarly)

5_Content

STEP 5 — MONITOR

Ensure commitments are implemented, tracked, and publicly accountable

1. Monitoring Frameworks

Monitoring frameworks vary across CBAs, but the strongest ones share four core components: clear responsibilities, regular reporting, transparent review, and escalation pathways.

A. Developer Self-Reporting (most common)

Developers submit periodic reports (quarterly or semi-annual) detailing progress on each commitment.

Strengths: simple, low-cost

Risks: selective reporting; limited verification

B. Joint Monitoring Committee (highly effective)

A committee of community, developer, and sometimes municipal representatives reviews reports, requests documentation, and issues findings.

Strengths: shared oversight, transparency, legitimacy

Risks: requires sustained participation and capacity

C. Third-Party or Independent Monitoring

An external consultant or nonprofit verifies compliance.

Strengths: independence, technical expertise

Risks: cost, requires funding mechanism

D. Public Agency Monitoring (common in RE + infrastructure)

Municipal or state agencies incorporate CBA commitments into permitting or compliance processes.

Strengths: regulatory authority

Risks: political turnover; shifting priorities

E. Hybrid Models (increasingly common)

Combines self-reporting, committee oversight, and public agency review.

Strengths: redundancy; resilience to turnover

Risks: coordination complexity

Suggested Examples:

- ☐ Developer self-reporting ex: Quarterly progress reports with metrics and photos
- ☐ Joint committee ex: Meet bi-monthly, publish minutes online

- ☐ Independent monitoring ex: Hire a consultant for annual compliance audits
- ☐ Hybrid model ex: Combine community review with independent oversight

2. Monitoring Committee Structure

Monitoring committees are one of the strongest predictors of successful enforcement.

A. Composition

- Community representatives (2–5)
- Developer representatives (1–2)
- Municipal staff (optional but helpful)
- Independent expert (optional; e.g., environmental, workforce, or legal)

B. Roles

- Chair or rotating facilitator
- Secretary/record-keeper
- Data reviewer (can be an expert or staff)
- Liaison to the public (handles transparency and communication)

C. Responsibilities

- Review quarterly or semi-annual reports
- Request documentation or site visits
- Track progress against timelines
- Issue findings or compliance summaries
- Recommend corrective actions
- Maintain public transparency (website, dashboard, or annual report)

D. Meeting Frequency

- Quarterly during construction
- Semi-annual or annual during operations
- Ad hoc if non-compliance is identified

E. Authority

Committees should have the power to:

- Request information
- Trigger notice-and-cure processes
- Refer disputes to mediation or arbitration
- Publish compliance findings

Committees without authority tend to dissolve or become symbolic

Suggested Checklist:

- ☐ Include ideally-equal representation from community, developer, and municipality
- ☐ Choose a chair and secretary for record-keeping
- ☐ Define quorum and voting procedures
- ☐ Establish a public comment period for each meeting

5_PDF/Template

Reporting Form Template

Purpose:

Use this form to document progress toward each commitment in the Community Benefits Agreement. It ensures transparency, accountability, and consistent communication between developers, municipalities, and community partners.

Section 1 — Project Information

Field	Details
Project Name	
Developer Name	
Reporting Period (Start–End Date)	
Report Prepared By	
Date of Submission	

Section 2 — Summary of Commitments

List each benefit category and describe progress to date.

Benefit Category	Commitment Description	Status	Evidence / Documentation	Next Steps / Notes
Workforce & Economic		☐ Not Started		
		☐ In Progress		
		☐ Completed		
Environment & Mitigation		☐ Not Started		
		☐ In Progress		
		☐ Completed		
Community Investment		☐ Not Started		
		☐ In Progress		
		☐ Completed		
Housing		☐ Not Started		
		☐ In Progress		
		☐ Completed		

Other _____ ☐ Not Started _____
 (Specify) _____ ☐ In Progress _____
 _____ ☐ Completed _____

Section 3 — Quantitative Metrics

Provide numerical data where applicable.

Metric	Target	Actual to Date	Variance (+/-)	Comments
Local Jobs Created	_____	_____	_____	_____
Funds Distributed (\$)	_____	_____	_____	_____
Environmental Monitoring Reports Completed	_____	_____	_____	_____
Affordable Units Delivered	_____	_____	_____	_____

Section 4 — Community Engagement and Feedback

- ☐ Community briefings held this period (number): _____
☐ Feedback received and addressed in project design.
☐ Summary of community concerns and responses:

Section 5 — Compliance Verification

- ☐ Monitoring Committee review completed on (date): _____
☐ Documentation submitted to municipality and community partners.
☐ Non-compliance issues identified (if any): _____
☐ Corrective actions taken or planned: _____

Section 6 — Attachments

- ☐ Meeting minutes or summaries
☐ Financial statements or receipts
☐ Environmental data reports
☐ Photos or maps of completed work
☐ Other supporting documents

Section 7 — Certification

I certify that the information provided in this report is accurate and complete to the best of my knowledge.

Signature: _____ **Date:** _____

Title / Organization: _____

Module: Step 6 Enforce

6_Visuals

STEP 6: ENFORCE



1.  (click to expand)



2. 

3. 

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6_Content

STEP 6 — ENFORCE

Activate the tools that ensure commitments are delivered and know when to escalate

1. Enforcement Pathways

Enforcement typically follows a four-stage escalation pathway, moving from collaborative problem-solving to formal remedies only when necessary.

A. Informal Resolution (first step in most CBAs)

Triggered when:

- A report shows a missed deadline
- A committee identifies incomplete documentation
- A community member flags an issue

Tools:

- Direct communication
- Clarification of expectations
- Adjusted timelines (if allowed)

Most issues are administrative, not adversarial.

B. Notice and Cure (formal but non-adversarial)

Process:

1. Monitoring committee or party issues written notice of non-compliance
 2. Developer has a defined period (e.g., 30–90 days) to “cure” the breach
 3. Committee verifies completion
- Creates a paper trail
 - Gives developers a fair chance to fix issues
 - Avoids escalation

C. Mediation or Arbitration (structured dispute resolution)

Used when:

- Cure period expires
- Parties disagree on whether compliance occurred

- Technical disputes arise (e.g., environmental data)
- Neutral facilitation reduces conflict
- Faster and cheaper than litigation
- Keeps relationships intact

D. Legal Enforcement (last resort)

Available when:

- The CBA is a legally binding contract
- All other pathways fail
- Harm is significant or ongoing

Legal remedies may include:

- Specific performance
- Injunctive relief
- Financial penalties
- Enforcement of performance bonds

Suggested Checklist:

- ☐ Track every enforcement step in a shared log so progress and outcomes are visible to all parties
- ☐ Use a standard Notice and Cure form to document issues and deadlines clearly
- ☐ Set calendar reminders for cure periods and mediation dates to avoid missed follow-ups
- ☐ Keep all correspondence in one folder for quick reference if escalation becomes necessary
- ☐ Confirm who has authority to initiate each stage before enforcement begins

2. Examples of Successful Enforcement

A. Block Island Wind Farm (Rhode Island)

Mechanisms used:

- Clear reimbursement clause
- Full-time community liaison
- Strong reporting and communication

Outcome: When seabed erosion exposed the transmission cable, the developer invoked the reimbursement clause and paid for repairs immediately, without litigation.

Why it succeeded: Specificity + trust + clear contractual language.

B. Calverton Solar Energy Center (New York)

Mechanisms used:

- CBA embedded in municipal approval process
- Town withheld certificate of occupancy

Outcome: Developer completed landscaping and payments to receive final permits.

Why it succeeded: Municipal leverage + regulatory enforcement.

C. Detroit Community Benefits Ordinance (Michigan)

Mechanisms used:

- City authority to impose penalties
- Public reporting requirements

Outcome: Multiple projects corrected non-compliance after public reporting and administrative pressure.

Why it succeeded: Institutionalized enforcement + political accountability.

D. NECEC (Maine)

Mechanisms used:

- Third-party fund administration
- Clear payment schedules

Outcome: Benefits continued even as the project faced legal and political challenges.

Why it succeeded: Independent administration insulated benefits from project volatility.

E. Hunters Point Shipyard (San Francisco) — a cautionary example

Mechanisms missing:

- Stable oversight body
- Independent authority
- Long-term community capacity

Outcome: Oversight collapsed after ACORN dissolved; enforcement weakened.

Lesson: Monitoring bodies must be durable and independent.

Suggested Checklist:

- ☐ Review these case examples and those in the resource library to identify which enforcement tools fit your project
- ☐ Note which mechanisms worked best and adapt them locally
- ☐ Use cautionary examples to strengthen your monitoring structure before problems arise

3. When to Seek Legal Support

Legal support is not only for litigation. It is often most valuable early, when issues are still fixable.

Seek legal support when:

- A developer repeatedly misses reporting deadlines
- Notice-and-cure periods expire without resolution
- The developer disputes the meaning of a clause
- Ownership changes and successor obligations are unclear
- A monitoring committee needs help interpreting data
- A municipality is unsure how to enforce a condition
- A community coalition lacks capacity to evaluate compliance
- A project enters bankruptcy, restructuring, or sale

Seek immediate legal support when:

- A developer refuses to comply
- A benefit is at risk of disappearing (e.g., payment, mitigation measure)
- Environmental or health harms are occurring
- A developer challenges the CBA's enforceability

Suggested Checklist:

- ☐ Contact a legal clinic or municipal attorney as soon as repeated non-compliance occurs
- ☐ Gather all relevant documentation before meeting with counsel
- ☐ Ask legal advisors to confirm successor obligations and enforcement options annually

4. Links to Legal Support Resources

Community-Facing Legal Support

Community Lawyering Clinics (various universities)

- Many law schools offer free or low-cost support for community coalitions

Local Legal Aid Organizations

- Often assist with contract interpretation and administrative enforcement

Environmental Justice Clinics

- (e.g., Vermont Law School, UCLA, Berkeley) support EJ-related CBA issues

Municipal-Facing Legal Support

- ICLEI USA: guidance on climate-related agreements
- Urban Sustainability Directors Network (USDN): peer support + templates
- National League of Cities (NLC): municipal legal resources
- American Planning Association (APA): guidance on development agreements

Renewable-Energy-Specific

- Energy Justice Network: community support for energy project agreements
- Institute for Local Self-Reliance (ILSR): technical + policy support
- State consumer advocate offices: often review utility-scale project agreements

Suggested Checklist:

- ☐ Reach out to listed organizations for guidance specific to your project type or jurisdiction
- ☐ Keep contact details and service descriptions updated in a shared resource library
- ☐ Bookmark municipal and renewable-energy resources for quick access during enforcement
- ☐ Use peer networks like USDN and NLC to learn how other communities have resolved similar issues

6_PDF/Template

Resource Library

RL_Visuals

RESOURCE LIBRARY

1 KEYWORD SEARCH BOX

FILTERS

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templates

external resources

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case studies

RL_Content

RESOURCE LIBRARY

A searchable appendix for all templates, examples, and external references used throughout the dashboard.

Filter, sort, and search to find relevant materials

1. Full list of templates
 - Priorities Worksheet
 - Readiness Checklist
 - Engagement Plan Template
 - Negotiation Preparation Worksheet
 - CBA Structure Template
 - Enforcement Checklist
 - Reporting Form Template
2. Links to other external resources
 - [Massachusetts CBP/CBA Guidelines](#)
 - [J40 Playbook - Community Benefits Implementation](#)
 - [Best Practices for Community Benefits Agreements](#)
 - [Building Public Support for Clean Energy Projects](#)
 - [State Requirements for Renewable Energy CBAs](#)
 - [Community Benefits Tools for California Clean Energy](#)
 - [Responsible Development in Appalachia](#)
 - [Community Benefits in Southwestern Pennsylvania](#)
 - [Community Benefits — Fair Shake Environmental Legal Services](#)
 - [Advocacy Tools for Protecting Public Health Resources – Dismantling Injustice](#)
 - [Common Challenges in Negotiating Community Benefits Agreements](#)
 - [Delivering Community Benefits Through Economic Development](#)
 - [Community Benefits: Practical Tools for Proactive Development](#)
 - [Community Benefits Timeline](#)
 - [DOE Community Benefits Guide](#)
3. All case studies
 - Our own from paper
 - [Offshore Wind Community Benefits Agreements in California](#)
 - [Federal Guidelines and Best Practices for CBAs](#)
 - [Community Benefits Agreements Database](#)
 - [Detroit's Community Benefits Ordinance - Lessons on Engagement](#)
4. Filters:
 - Type of resource: Downloadable template/worksheet, external information, case study example
 - For case studies: project sector, location, status/outcome
 - For external resources: sort by publication year, filter by topic

Glossary

Glossary

Coalition

A group of community organizations, residents, or advocates that collectively represent local interests in CBA negotiations.

Community Benefits Agreement (CBA)

A legally binding contract between a developer and a community coalition or municipality that outlines specific benefits the developer must deliver.

Community Benefit Plan (CBP)

A non-binding plan required in some federal funding applications (e.g., DOE) that outlines how a project will engage and benefit local communities.

Community Investment Fund

A pool of money contributed by the developer to support local programs, infrastructure, or services.

Cumulative Impact Analysis (CIA)

An assessment of cumulative environmental and social burdens required for certain energy infrastructure projects under Massachusetts state law.

Developer

The company or entity proposing and constructing a project subject to community review or permitting.

Dispute Resolution

The process for addressing non-compliance or disagreements, often through mediation or arbitration.

Engagement Plan

A document outlining how the community will be informed, consulted, and involved throughout the project.

Environmental Justice (EJ) Principles

Principles ensuring meaningful involvement and equitable distribution of environmental benefits and burdens regardless of race, income, or other protected characteristics.

Host Community Agreement

A related contract between a municipality and developer outlining payments or benefits tied to project operation.

Joint Fact-Finding

A collaborative process where all parties gather and verify project data together to reduce information gaps.

Key Stakeholders

Residents, community groups, local officials, EJ communities, tribes, and others within or near the project area who may be affected.

Local Hire

A requirement that a certain percentage of jobs go to residents within a defined geographic area.

Meaningful Engagement

Early, continuous, accessible, culturally competent engagement that informs decision-making.

Monitoring Committee

A group established to track compliance with CBA terms, review reports, and issue findings.

Municipality

A local government body (city, town, or county) responsible for land-use decisions, permitting, and enforcement.

Neutral Facilitator

An independent professional who manages meetings, ensures balanced participation, and helps translate interests into agreements.

Notice and Cure Period

The timeframe given to a developer to fix a breach before enforcement actions begin.

Performance Bond

A financial guarantee that funds enforcement or remediation if the developer fails to meet commitments.

Stakeholder Map

A visual or written inventory of groups and individuals affected by or involved in a project.

Successor Clause

A provision ensuring that CBA obligations continue if project ownership changes.

Termination Clause

Defines conditions under which the agreement may end before its scheduled duration.

Sources

- Bacow, L. S., & Wheeler, M. (1984). *Environmental dispute resolution*. Plenum press.
- Baxamusa, M. H. (2008). Empowering Communities through Deliberation The Model of Community Benefits Agreements. *Journal of Planning Education and Research*, 27(3), 261–276. <https://doi.org/10.1177/0739456X07308448>
- Been, V. (2010). *Community Benefits Agreements: A New Local Government Tool or Another Variation on the Exactions Theme?*
- Belongie, N., & Silverman, R. M. (2018). Model CBAs and Community Benefits Ordinances as Tools for Negotiating Equitable Development: Three Critical Cases. *Journal of Community Practice*, 26(3), 308–327. <https://doi.org/10.1080/10705422.2018.1476427>
- Berglund, L. (2021). Early Lessons From Detroit's Community Benefits Ordinance. *Journal of the American Planning Association*, 87(2), 254–265. <https://doi.org/10.1080/01944363.2020.1823243>
- Brungard, E., & Fraser, C. (2025). *Community Benefits Snapshot: Block Island Wind Farm Community Benefits Agreement*. <https://www.wri.org/snapshots/community-benefits-snapshot-block-island-wind-farm-community-benefits-agreement>
- Cascadden, M., Gunton, T., & Rutherford, M. (2021). Best practices for Impact Benefit Agreements. *Resources Policy*, 70, 101921. <https://doi.org/10.1016/j.resourpol.2020.101921>
- Civiletti, D., & Nigro, Q. (2023, August 2). *Riverhead's largest solar plant operated without town's official OK for eight months—RiverheadLOCAL*. Riverhead Local. <https://riverheadlocal.com/2023/08/02/riverheads-largest-solar-plant-operated-without-towns-official-ok-for-eight-months/>
- Clarke, C. (2016). Community Benefits Agreements: To The Extent Possible. *University of Baltimore Journal of Land and Development*, 6(1). <https://scholarworks.law.ubalt.edu/ubjld/vol6/iss1/5>

- De Barbieri, E. W. (2017). Do Community Benefits Agreements Benefit Communities? *SSRN Electronic Journal*. <https://doi.org/10.2139/ssrn.3028688>
- Fang, R. (2023). Institutionalizing community control: A community benefits ordinance for los angeles. *Journal of Affordable Housing & Community Development Law*, 32(2). <https://www.proquest.com/docview/2878438025>
- Farley, B. (2024). Disrupting the knowledge and power imbalance in Community Benefits Agreement negotiations: Lessons from the Aggie Square development in Sacramento, California. *Journal of Urban Affairs*, 46(10), 2169–2184. <https://doi.org/10.1080/07352166.2022.2155527>
- Faulkner, T. (2020, February 17). *Senate Commission Wants Answers Regarding Exposed Block Island Wind Farm Cables—ecoRI News*. ecoRI News. <https://ecori.org/2020-2-17-senate-commission-wants-answer-on-exposed-block-island-wind-cable/>
- Gross, J. (2007). Community Benefits Agreements: Definitions, Values, and Legal Enforceability. *Journal of Affordable Housing & Community Development Law*, 17(1–2), 35–58.
- Gross, J., LeRoy, G., & Janis-Aparicio, M. (2005). *Community Benefits Agreements: Making Development Projects Accountable*. Good Jobs First and the California Partnership for Working Families.
- Holznagel, B. (1991). Use of Environmental Mediation when Siting Hazardous Waste Facilities. *National Law School Journal*, 3(1). <https://repository.nls.ac.in/nlsj/vol3/iss1/24>
- Jacobs, K. (2010, May 1). Raising The Bar: The Hunters Point Shipyard and Candlestick Point Development Community Benefits Agreement. *UC Berkeley Labor Center*. <https://laborcenter.berkeley.edu/raising-the-bar-the-hunters-point-shipyard-and-candlestick-point-development-community-benefits-agreement/>

Marantz, N. J. (2015). What Do Community Benefits Agreements Deliver? Evidence From Los Angeles. *Journal of the American Planning Association*, 81(4), 251–267.

<https://doi.org/10.1080/01944363.2015.1092093>

McGuire, J. (1986). The Dilemma of Public Participation in Facility Siting Decisions and the Mediation Alternative. *Seton Hall Journal of Legislation and Public Policy*, 9(2).

<https://scholarship.shu.edu/shlj/vol9/iss2/8>

Musil, T. A. (2012). The Sleeping Giant: Community Benefit Agreements and Urban Development. *The Urban Lawyer*, 44(4), 827–851.

Stephan. (2022). Contracting with Communities: An Analysis of the Enforceability of Community Benefits Agreements. *Minnesota Journal of Law & Inequality*.

<https://doi.org/10.24926/25730037.646>

Susskind, L., & Cruikshank, J. L. (2006). *Breaking Robert's rules: The new way to run your meeting, build consensus, and get results*. Oxford University Press.

Susskind, L., McKearnan, S., & Thomas-Larmer, J. (1999). *The Consensus Building Handbook: A Comprehensive Guide to Reaching Agreement*. SAGE Publications, Inc.

<https://doi.org/10.4135/9781452231389>

Wolf-Powers, L. (2010). Community Benefits Agreements and Local Government: A Review of Recent Evidence. *Journal of the American Planning Association*, 76(2), 141–159.

<https://doi.org/10.1080/01944360903490923>